



US00PP36911P2

(12) **United States Plant Patent**
Palmer et al.

(10) **Patent No.:** **US PP36,911 P2**

(45) **Date of Patent:** **Sep. 2, 2025**

- (54) **STRAWBERRY PLANT NAMED**
‘DrisStrawOneHundredSeven’
- (50) Latin Name: *Fragaria x ananassa*
Varietal Denomination:
DrisStrawOneHundredSeven
- (71) Applicant: **Driscoll’s, Inc.**, Watsonville, CA (US)
- (72) Inventors: **Sarah Palmer**, East Malling (GB);
Philip J. Stewart, Royal Oaks, CA
(US); **Umberto Rosolia**, Maidstone
(GB); **Alessandra Lillo**, Bologna (IT)
- (73) Assignee: **Driscoll’s, Inc.**, Watsonville, CA (US)
- (*) Notice: Subject to any disclaimer, the term of this
patent is extended or adjusted under 35
U.S.C. 154(b) by 0 days.
- (21) Appl. No.: **18/911,159**
- (22) Filed: **Oct. 9, 2024**
- (51) **Int. Cl.**
A01H 5/08 (2018.01)
A01H 6/74 (2018.01)
- (52) **U.S. Cl.**
USPC **Plt./208**
- (58) **Field of Classification Search**
USPC **Plt./208, 209**
See application file for complete search history.
- (56) **References Cited**

U.S. PATENT DOCUMENTS

PP1,745 P 8/1958 Lang
PP3,981 P 11/1976 Bringhurst et al.
PP4,487 P 11/1979 Bringhurst et al.
PP4,538 P 5/1980 Bringhurst et al.
PP5,262 P 7/1984 Voth et al.
PP5,265 P 7/1984 Voth et al.
PP5,266 P 7/1984 Bringhurst et al.
PP5,300 P 10/1984 Johnson, Jr. et al.
PP5,840 P 12/1986 Johnson, Jr. et al.
PP6,191 P 5/1988 Johnson, Jr. et al.
PP6,231 P 7/1988 Johnson, Jr. et al.
PP6,578 P 1/1989 Voth et al.
PP6,579 P 1/1989 Bringhurst et al.
PP7,024 P 9/1989 Johnson, Jr. et al.
PP7,172 P 2/1990 Voth et al.
PP7,522 P 5/1991 Johnson, Jr. et al.
PP7,614 P 8/1991 Bringhurst et al.
PP7,615 P 8/1991 Bringhurst et al.
PP8,086 P 1/1993 Nelson et al.
PP8,205 P 4/1993 Nelson et al.
PP8,649 P 3/1994 Sjulín et al.
PP8,661 P 3/1994 Bringhurst et al.
PP8,708 P 5/1994 Voth et al.
PP8,745 P 5/1994 Sjulín et al.
PP9,130 P 5/1995 Sjulín et al.
PP9,909 P 6/1997 Ackerman et al.
PP10,221 P 2/1998 Sjulín et al.
PP10,534 P 8/1998 Sjulín et al.
PP10,642 P 10/1998 Amorao et al.
PP11,035 P 8/1999 Mowrey et al.
PP11,277 P 3/2000 Gilford et al.
PP11,279 P 3/2000 Gilford et al.
PP11,522 P 9/2000 Amorao et al.

PP11,548 P 10/2000 Amorao et al.
PP11,554 P 10/2000 Sjulín et al.
PP11,639 P 11/2000 Mowrey et al.
PP12,186 P 11/2001 Gilford et al.
PP12,436 P 3/2002 Amorao et al.
PP12,577 P 4/2002 Amorao et al.
PP12,817 P 7/2002 Gilford et al.
PP12,899 P 9/2002 Mowrey et al.
PP13,386 P 12/2002 Mowrey et al.
PP13,469 P 1/2003 Larson et al.
PP14,005 P 7/2003 Amorao et al.
PP14,062 P 8/2003 Amorao et al.
PP14,109 P 8/2003 Gilford et al.
PP14,771 P 5/2004 Amorao et al.
PP15,145 P 9/2004 Mowrey et al.
PP15,308 P 11/2004 Sjulín et al.
PP15,375 P 11/2004 Mowrey et al.
PP15,435 P 12/2004 Sjulín et al.
PP15,596 P 3/2005 Amorao et al.
PP15,731 P 4/2005 Amorao et al.
PP15,752 P 5/2005 Gilford et al.
PP16,070 P 10/2005 Gilford et al.
PP16,238 P 2/2006 Amorao et al.
PP16,241 P 2/2006 Mowrey et al.
PP16,298 P 2/2006 Gilford et al.
PP16,299 P 2/2006 Gilford et al.
PP16,475 P 4/2006 Gilford et al.
PP16,558 P 5/2006 Lopez
PP18,000 P 9/2007 Meulenbroek
PP18,040 P 9/2007 Mowrey et al.
PP18,041 P 9/2007 Gilford
PP18,458 P 1/2008 Ferguson et al.
PP18,575 P 3/2008 Amorao et al.
PP18,878 P 6/2008 Mowrey et al.
PP19,240 P 9/2008 Gilford et al.
PP19,673 P 2/2009 Ferguson et al.
PP19,767 P 2/2009 Shaw et al.
PP20,248 P 9/2009 Rogers et al.
PP20,363 P 9/2009 Chandler
PP20,701 P 2/2010 Gilford et al.
PP20,731 P 2/2010 Mowrey et al.
PP20,733 P 2/2010 Mowrey et al.
PP20,735 P 2/2010 Ferguson
PP20,775 P 2/2010 Mowrey et al.
PP20,922 P 4/2010 Gilford et al.
PP21,538 P 11/2010 Gilford et al.
PP21,559 P 12/2010 Ferguson et al.
PP21,762 P 3/2011 Stewart et al.
PP22,040 P 7/2011 Stewart et al.
PP22,218 P 11/2011 Ferguson et al.
PP22,247 P 11/2011 Ferguson

(Continued)

Primary Examiner — Shubo Zhou

Assistant Examiner — Zachariah Allan Kay

(74) Attorney, Agent, or Firm — Morrison & Foerster

LLP

(57) **ABSTRACT**

A new and distinct variety of strawberry plant named
‘DrisStrawOneHundredSeven’, particularly selected for its
yield potential, fruit quality, and moderate plant habit, is
disclosed.

4 Drawing Sheets

(56)

References Cited

U.S. PATENT DOCUMENTS

PP23,107 P2	10/2012	Ferguson et al.	PP30,851 P2	8/2019	Fear et al.
PP23,148 P2	10/2012	Gilford et al.	PP30,936 P2	10/2019	Stewart et al.
PP23,377 P2	2/2013	Ferguson et al.	PP31,083 P2	11/2019	Carrillo Mendoza et al.
PP23,378 P2	2/2013	Pullen et al.	PP31,233 P2	12/2019	Pakozdi et al.
PP23,382 P2	2/2013	Ferguson et al.	PP31,527 P3	3/2020	Carrillo Mendoza et al.
PP23,383 P2	2/2013	Ferguson et al.	PP31,655 P2	4/2020	Carrillo Mendoza et al.
PP23,400 P2	2/2013	Ferguson et al.	PP31,703 P2	4/2020	Stewart et al.
PP23,401 P2	2/2013	Pullen et al.	PP31,827 P2	6/2020	Ferguson et al.
PP23,459 P2	3/2013	Stewart et al.	PP31,896 P2	6/2020	Pakozdi et al.
PP23,506 P3	4/2013	Ferguson et al.	PP31,935 P2	7/2020	Pakozdi et al.
PP23,517 P3	4/2013	Ferguson et al.	PP32,079 P2	8/2020	Carrillo Mendoza et al.
PP24,096 P3	12/2013	Fear et al.	PP32,080 P2	8/2020	Ferguson et al.
PP24,317 P3	3/2014	Ferguson et al.	PP32,271 P2	10/2020	Ferguson et al.
PP24,333 P3	3/2014	Vitten et al.	PP32,305 P3	10/2020	Pakozdi et al.
PP24,395 P3	4/2014	Vitten et al.	PP32,498 P2	11/2020	Carrillo Mendoza et al.
PP24,533 P3	6/2014	Ferguson et al.	PP32,499 P3	11/2020	Jacobs et al.
PP24,745 P2	8/2014	Vitten et al.	PP32,500 P3	11/2020	Stewart et al.
PP25,408 P3	4/2015	Vitten et al.	PP32,801 P2	2/2021	Ferguson et al.
PP25,437 P3	4/2015	Vitten et al.	PP32,814 P2	2/2021	Stewart et al.
PP25,698 P3	7/2015	Ferguson et al.	PP32,824 P2	2/2021	Stewart et al.
PP25,699 P3	7/2015	Stewart et al.	PP33,070 P2	5/2021	Mendoza et al.
PP25,747 P3	7/2015	Kibbe et al.	PP33,090 P2	5/2021	Mendoza et al.
PP25,866 P3	9/2015	Ferguson et al.	PP33,283 P2	7/2021	Stewart et al.
PP26,800 P3	6/2016	Stewart et al.	PP33,513 P2	9/2021	Stewart et al.
PP26,801 P3	6/2016	Stewart et al.	PP33,737 P2	12/2021	Hernandez et al.
PP26,802 P3	6/2016	Rodriguez Alcazar et al.	PP33,738 P2	12/2021	Stewart et al.
PP27,442 P2	12/2016	Kibbe et al.	PP34,072 P2	3/2022	Mendoza et al.
PP27,645 P3	2/2017	Vitten et al.	PP34,212 P2	5/2022	Jacobs et al.
PP27,682 P3	2/2017	Kibbe et al.	PP34,241 P2	5/2022	Pakozdi et al.
PP27,711 P3	2/2017	Vitten et al.	PP34,273 P2	5/2022	Mendoza et al.
PP27,813 P3	3/2017	Ferguson et al.	PP34,274 P2	5/2022	Ferguson et al.
PP29,289 P3	5/2018	Vitten et al.	PP34,440 P2	7/2022	Nguyen et al.
PP29,728 P2	10/2018	Stewart et al.	PP34,441 P2	7/2022	Nguyen et al.
PP29,729 P2	10/2018	Kibbe et al.	PP34,659 P2	10/2022	Nguyen et al.
PP29,730 P2	10/2018	Kibbe et al.	PP34,751 P2	11/2022	Mendoza et al.
PP29,731 P2	10/2018	Ferguson et al.	PP34,775 P2	11/2022	Stewart et al.
PP29,747 P2	10/2018	Vitten et al.	PP34,776 P2	11/2022	Nguyen et al.
PP29,748 P2	10/2018	Vitten et al.	PP34,777 P2	11/2022	Mendoza et al.
PP29,749 P2	10/2018	Stewart et al.	PP34,916 P2	1/2023	Stewart et al.
PP30,775 P2	8/2019	Carrillo Mendoza et al.	PP35,092 P2	4/2023	Nguyen et al.
PP30,789 P2	8/2019	Ferguson et al.	PP35,093 P2	4/2023	Stewart et al.
PP30,818 P2	8/2019	Pakozdi et al.	PP35,158 P2	5/2023	Stewart et al.
			PP35,909 P2	7/2024	Lillo et al.
			2003/0079263 P1	4/2003	Gilford et al.
			2013/0276182 P1	10/2013	Fear et al.

1

STRAWBERRY PLANT NAMED 'DrisStrawOneHundredSeven'

Latin name: Botanical classification: *Fragaria x ananassa*.

Varietal denomination: The varietal denomination of the claimed variety of strawberry plant is 'DrisStrawOneHundredSeven'.

BACKGROUND OF THE INVENTION

Cultivated strawberry is a hybrid species of the genus *Fragaria* that is grown worldwide for its fruit. Modern strawberry was first bred in Brittany, France, in the 18th century by crossing *Fragaria virginiana* with *Fragaria chiloensis*. Strawberry fruit is an aggregate accessory fruit, with the fleshy part of the fruit being derived from the receptacle that holds the ovaries.

Strawberry varieties vary widely in color, size, shape, flavor, season of ripening, degree of fertility, and susceptibility to disease. Certain varieties vary in foliage, and some vary in the relative development of their reproductive organs. Typically, strawberry flowers appear hermaphroditic in structure, but function as either male or female. Generally, commercial production of strawberry plants involves propagation from runners and distribution as either plugs or bare root plants. Cultivation is either perennial or annual plasticulture. During the off season, strawberries can also be produced in greenhouses.

Strawberry fruit is widely appreciated for its characteristic bright red color, aroma, juicy texture, and sweetness. Strawberry fruit is a popular fruit that is generally consumed either fresh or in prepared foods, such as preserves and baked goods.

Strawberry is an important and valuable fruit crop. Accordingly, there is a need for new varieties of strawberry plants. In particular, there is a need for improved varieties of strawberry plant that are stable, high yielding, and agronomically sound.

SUMMARY OF THE INVENTION

In order to meet these needs, the present invention is directed to an improved variety of strawberry plant. In particular, the invention relates to a new and distinct variety of strawberry plant (*Fragaria x ananassa*), which has been denominated as 'DrisStrawOneHundredSeven'.

Strawberry plant variety 'DrisStrawOneHundredSeven' was selected in East Malling, Kent, United Kingdom in 2020, and originated from a controlled cross between the female parent proprietary strawberry plant 'GE212.011' (unpatented) and the male parent proprietary strawberry plant 'GE046.003' (unpatented). The original seedling of the new variety was first asexually propagated via stolons in Kent, United Kingdom in July 2020.

'DrisStrawOneHundredSeven' was subsequently asexually propagated via stolons, and has undergone testing at test plots in East Malling, Kent, United Kingdom for two years (2022 to 2024). The present variety has been found to be stable and reproduce true to type through successive asexual propagations via stolons and tissue culture.

'DrisStrawOneHundredSeven' was particularly selected for its yield potential, fruit quality, and moderate plant habit.

DESCRIPTION OF THE DRAWINGS

This new strawberry plant is illustrated by the accompanying photographs. The colors shown are as true as can be

2

reasonably obtained by conventional photographic procedures. Unless otherwise indicated, the photographs are of plants that are 11 months old.

FIG. 1 illustrates whole fruit of variety 'DrisStrawOneHundredSeven'.

FIG. 2 illustrates longitudinal sections of fruit of variety 'DrisStrawOneHundredSeven'.

FIG. 3 illustrates the lower surface (top row) and upper surface (bottom row) of flowers of variety 'DrisStrawOneHundredSeven'.

FIG. 4 illustrates the lower surface (top) and upper surface (bottom) of leaves of variety 'DrisStrawOneHundredSeven'.

DETAILED BOTANICAL DESCRIPTION

The following detailed descriptions set forth the distinctive characteristics of 'DrisStrawOneHundredSeven'. The data which define these characteristics is based on observations taken in East Malling, Kent, United Kingdom from 2022 to 2024. This description is in accordance with UPOV terminology. Color designations, color descriptions, and other phenotypical descriptions may deviate from the stated values and descriptions depending upon variation in environmental, seasonal, climatic, and cultural conditions. 'DrisStrawOneHundredSeven' has not been observed under all possible environmental conditions. The botanical description of 'DrisStrawOneHundredSeven' was taken from plants that were eleven months old. The indicated values represent averages calculated from measurements of several plants. Color references are primarily to The R.H.S. Colour Chart of The Royal Horticultural Society of London (R.H.S.) (2015 edition). Descriptive terminology follows the *Plant Identification Terminology, An Illustrated Glossary*, 2nd edition by James G. Harris and Melinda Woolf Harris, unless where otherwise defined.

Classification:

Species.—*Fragaria x ananassa*.

Common name.—Strawberry.

Denomination.—'DrisStrawOneHundredSeven'.

Parentage:

Female parent.—Proprietary strawberry plant 'GE212.011' (unpatented).

Male parent.—Proprietary strawberry plant 'GE046.003' (unpatented).

Plant:

Height.—39.7 cm.

Width.—39.2 cm.

Height/width ratio.—1.

Number of crowns per plant.—3.6.

Growth habit.—Semi-upright.

Density of foliage.—Medium.

Stolon:

Average number of daughter plants per square foot.—13.

Diameter (at bract).—3.73 mm.

Overall color.—RHS 144A (Yellow green).

Anthocyanin coloration.—Absent.

Density of pubescence.—Sparse.

60 Fruiting truss:

Length (from crown to base of terminal flower or fruit).—36.3 cm.

Diameter (at base of truss).—5.2 mm.

Number of berries per truss.—6.1.

Attitude at first picking.—Semi-erect.

Color (at base of truss).—RHS 146A (Moderate olive green).

Leaf:

Number of leaflets.—Three only.
Color of leaf upper surface.—RHS 141A (Deep yellowish green).
Color of leaf lower surface.—RHS 138A (Moderate yellowish green).
Blistering.—Medium.
Glossiness.—Absent or weak.
Variegation.—Absent.
Terminal leaflet.—Length: 11.1 cm. Width: 9.4 cm. Length/width ratio: 1.2. Number of teeth per terminal leaflet: 21.4. Overall shape: Orbicular. Shape of base: Acute. Shape of apex: Rounded. Margin: Serrate to crenate. Margin profile: Revolute (margins rolled backwards). Shape in cross section: Straight.
Petiole.—Length: 262 mm. Diameter: 5.1 mm. Overall color: RHS N144A (Strong yellowish green). Pubescence: Sparse. Attitude of hairs: Slightly outwards. Bract frequency (number present on each petiole): 0.
Petiolule.—Length: 8.7 mm. Diameter: 2.9 mm. Color: RHS 145A (Strong yellow green).
Stipule.—Length: 31.9 mm. Width: 11.8 mm. Stipule color: RHS N144D (Strong yellow green). Anthocyanin coloration: Medium. Anthocyanin color: RHS 61C (Vivid purplish red).

Inflorescence:

Number of flowers per plant.—31.2.
Position of inflorescence in relation to foliage.—Same level.
Flowering interval.—Late April to early September.
Pedicele.—Attitude of hairs: Slightly outwards.
Flower.—Flower diameter (petal tip to petal tip on non-flattened flower): 24 mm. Arrangement of petals: Overlapping. Size of calyx in relation to corolla: Larger. Receptacle color: RHS 144B (Strong yellow green). Stamen: Present. Anther color: RHS 14B (Vivid yellow).
Petal.—Length: 11.2 mm. Width: 11.9 mm. Length/width ratio: 0.9. Number of petals per flower: 5.3. Color of upper surface: RHS 155A (Pale yellow green). Color of lower surface: RHS 155A (Pale yellow green). Overall shape: Orbicular. Shape of apex: Rounded. Margin: Entire. Shape of base: Rounded.
Calyx.—Diameter (sepal tip to sepal tip, measured on back of flower): 36.4 mm.
Sepal.—Length: 14.9 mm. Width: 7 mm. Number of sepals per flower: 10.9. Overall shape: Elliptical. Apex: Convex. Margin: Entire.

Fruit:

Fruit size.—Length: 45.3 mm. Width: 43.1 mm. Length/width ratio: 1.1.
Fruit hollow.—Length: 17.1 mm. Width: 8.4 mm. Length/width ratio: 2.
Shape.—Conical
Difference in shape of terminal and other fruits.—None or very slight.
Fruit color.—RHS 45A (Vivid red).
Evenness of color.—Even or very slightly uneven.
Glossiness.—Weak.
Evenness of surface.—Even or very slightly uneven.
Width of band without achenes.—Narrow.
Position of achenes.—Below surface.
Position of calyx attachment.—Inserted.
Attitude of sepals.—Outwards.
Diameter of calyx in relation to diameter of fruit.—Same size.

Adherence of calyx.—Strong.
Firmness.—Medium firm.
Color of flesh (excluding core).—RHS 44A (Vivid red).
Evenness of flesh color.—Even.
Distribution of flesh color.—Marginal and central.
Color of core.—RHS 44C (Vivid reddish orange).
Sweetness/soluble solids (in ° brix).—8.6.
Individual fruit weight.—21.8 g/fruit.
Achenes.—Number of achenes per fruit: 329. Weight: 0.000581 g/achene. Color of upper (sunward) side: RHS N34A (Moderate red). Color of lower (shaded) side: RHS 1A (Brilliant greenish yellow).
Fruiting.—Harvest interval: Mid-May to the end of September. Type of bearing: Day neutral. Productivity: Up to 1.173 kg of Class I fruit per plant per season from 11-to 16-month-old plants.
Resistance to abiotic stress, pests, and diseases:
Heat.—Moderately resistant.
Powdery mildew (Podosphaera macularis).—Moderately susceptible.
Anthraxnose crown rot (Colletotrichum acutatum).—Moderately resistant.
Verticillium wilt (Verticillium dahliae).—Moderately susceptible.

COMPARISON WITH PARENTAL AND
REFERENCE VARIETIES

‘DrisStrawOneHundredSeven’ differs from the female parent proprietary strawberry plant ‘GE212.011’ (unpatented) in that ‘DrisStrawOneHundredSeven’ has higher yield potential and more desirable non-oblate fruit shape compared to ‘GE212.011’.

‘DrisStrawOneHundredSeven’ differs from the male parent proprietary strawberry plant ‘GE046.003’ (unpatented) in that ‘DrisStrawOneHundredSeven’ has higher yield potential compared to ‘GE046.003’. Additionally, ‘GE046.003’ exhibits the undesirable characteristic of petal retention, which is not present in ‘DrisStrawOneHundredSeven’.

‘DrisStrawOneHundredSeven’ differs from the reference variety ‘DrisStrawFiftyNine’ (U.S. Plant Pat. No. 31,233) in that ‘DrisStrawOneHundredSeven’ has medium leaf blistering, acute shape of terminal leaflet base, greenish white color of upper side of petals, narrow width of band without achenes on fruit, and day neutral type of bearing, whereas ‘DrisStrawFiftyNine’ has absent or weak leaf blistering, obtuse shape of terminal leaflet base, white color of upper side of petals, absent or very narrow width of band without achenes on fruit, and fully remontant type of bearing.

‘DrisStrawOneHundredSeven’ differs from the reference variety ‘DrisStrawFiftyEight’ (U.S. Plant Pat. No. 30,851) in that ‘DrisStrawOneHundredSeven’ has absent stolon anthocyanin coloration, absent or weak leaf glossiness, greenish white color of upper side of petals, narrow width of band without achenes on fruit, and day neutral type of bearing, whereas ‘DrisStrawFiftyEight’ has medium stolon anthocyanin coloration, medium leaf glossiness, white color of upper side of petals, absent or very narrow width of band without achenes on fruit, and fully remontant type of bearing.

We claim:

1. A new and distinct variety of strawberry plant named ‘DrisStrawOneHundredSeven’ as shown and described herein.

* * * * *



FIG. 1

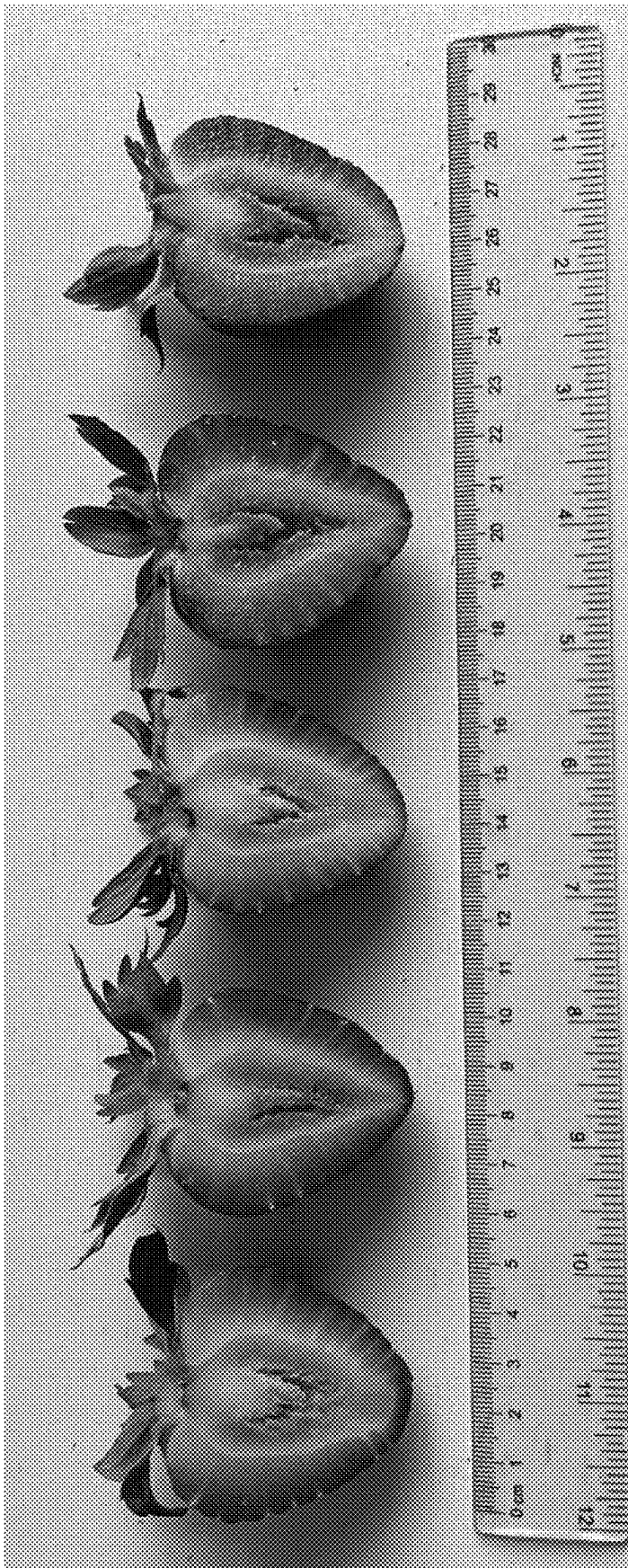


FIG. 2

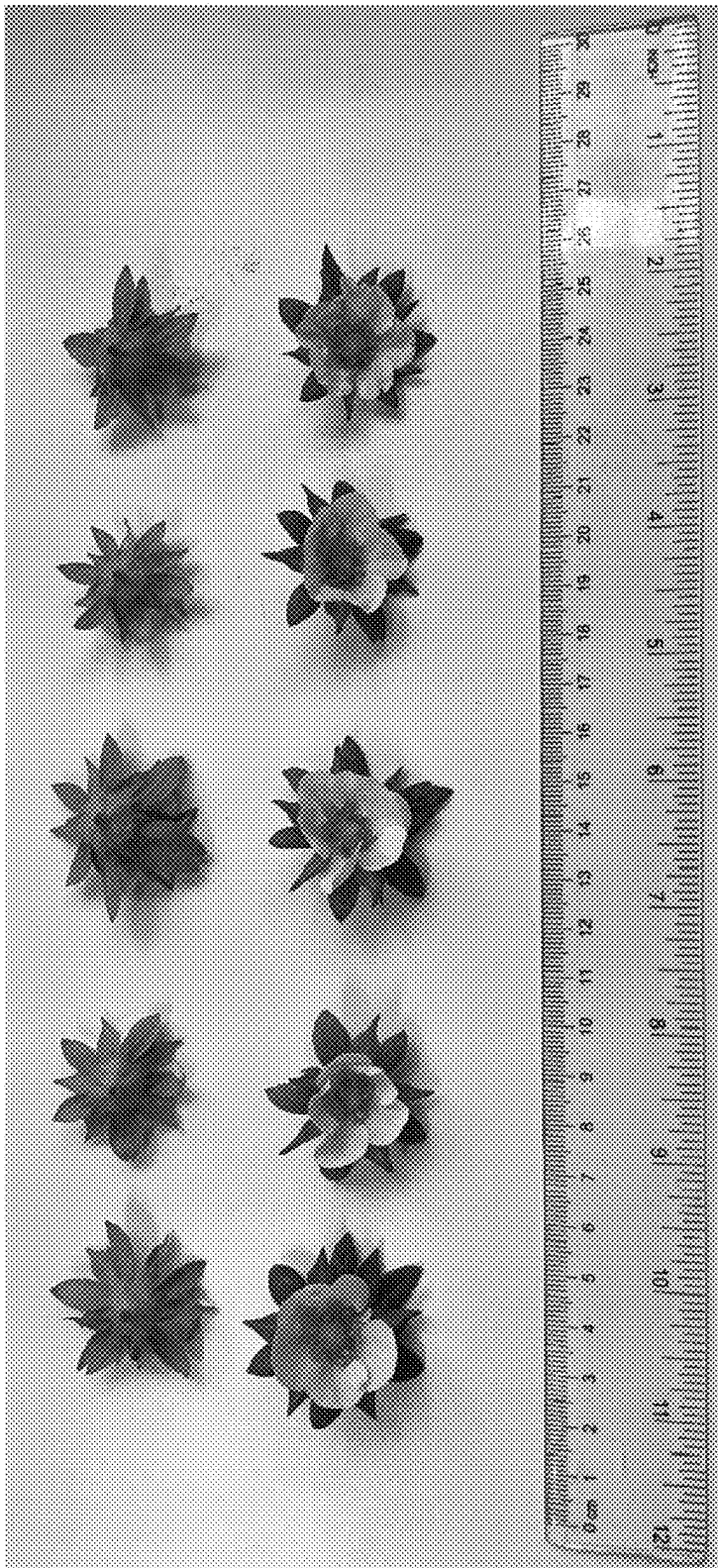


FIG. 3

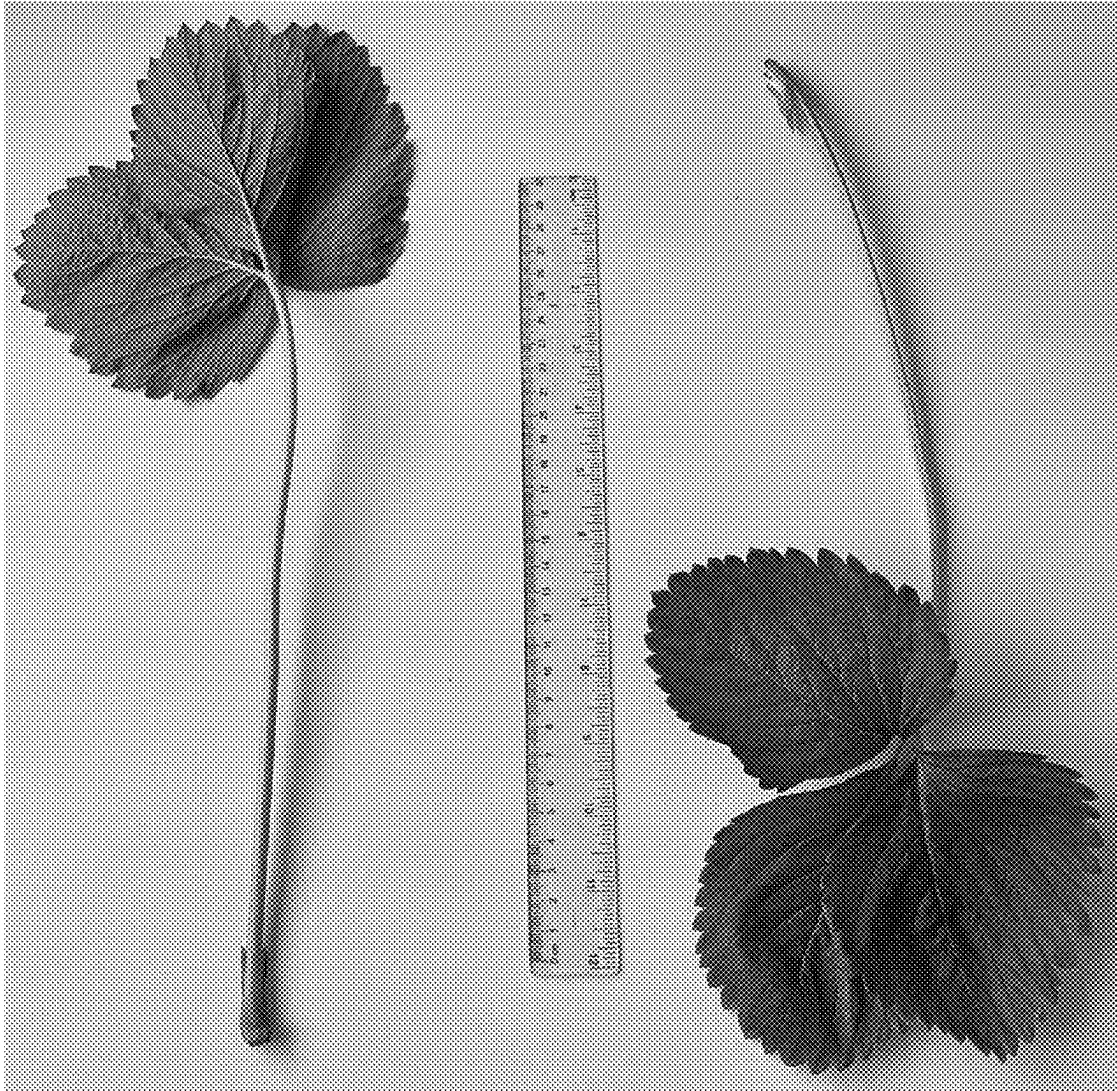


FIG. 4